LAW & MOTION CALENDAR
TENTATIVE RULINGS

May 28, 2026

Judge Melissa R. McCormick
Dept. CX105

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. *See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Aether v. Sovereign Lending Group, Inc. 2021-01209455	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a $125,000 PAGA settlement. The court grants the motion as follows: No enhancement award to plaintiff; $37,500.00 for attorneys' fees;

		$12,500.00 for attorneys' costs (see No. 1 below); $4,947.00 for settlement administration fees; and $70,053.00 total PAGA penalties ($52,539.75 to LWDA). 1. Plaintiff's counsel previously sought $18,399.66 in costs. *See* 6/5/25 Order (ROA 98, No. 7). In its June 5, 2025 order, the court ordered plaintiff to explain in the supplemental filing why costs totaling almost 15% of the gross settlement amount are reasonable. *Id.* Plaintiff did not do so. Instead, plaintiff's counsel attempted to justify particular costs (Supp. Moon. Decl. ¶ 7), which did not address the court's inquiry, i.e., why, in the context of the settlement here, is the total amount of costs reasonable? In its September 11, 2025 order (ROA 117, No. 3), the court again inquired regarding the reasonableness of the amount of costs. In the February 18, 2026 second supplemental declaration of counsel (ROA 123), plaintiff's counsel did not squarely address the court's question, and instead asserted that "the relevant consideration is not whether costs totaling a certain percentage of the gross settlement amount are reasonable; it is whether costs—in the context of the PAGA settlement generally—contribute to the remediation of present labor law violations and deterrence of future ones, and/or help maximize enforcement of state labor laws." Second Supp. Moon Decl. (ROA 123) ¶ 3. Plaintiff's counsel has not persuasively explained why the amount of costs sought are reasonable in the context of this settlement. Considering this settlement, the court awards reasonable and necessary litigation costs in the amount of $12,500.00. The final accounting hearing is scheduled for <u>March 18, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
2	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Balbino Alvira's Motion to Compel Deposition</u> Plaintiff Balbino Alvira moves for an order compelling defendant Pampanga Food Company, Inc. to appear for a person most knowledgeable (PMK) deposition. For the following reasons, plaintiff's motion is granted. *Background* Plaintiff states that on February 6, 2026 he served a notice for a deposition of defendant's PMK. Brief (ROA 159) at 2:21; Hyun Decl. (ROA 163) Ex. A. The notice lists 21 examination topics and 43 categories of documents; the notice set the deposition for

February 20, 2026. Hyun Decl. (ROA 163) Ex. A. (Plaintiff states in his reply that he not seeking to compel compliance with the document categories. ROA 213 at 6:21-22.) Plaintiff did not submit a proof of service of the deposition notice with his motion papers, but defendant concedes it received the deposition notice on or about February 6, 2026. Vanderpool Decl. (ROA 211) ¶ 3. Defendant served objections to the deposition notice on February 10, 2026. Hyun Decl. Ex. C. Defendant's objections state "General Objections (Deposition)," "General Objections (Document Requests)," and "Specific Objections" to the document categories. *Id.* Defendant did not move for an order staying the taking of the deposition and/or quashing the deposition notice.

Following various emails between counsel (Hyun Decl. Ex. B), on February 16, 2026 defendant's counsel emailed plaintiff's counsel that defendant could appear for the deposition on March 17 or March 24, 2026. *Id.* Ex. E. On February 17, 2026 plaintiff's counsel replied that plaintiff would not agree to delay the February 20 deposition to either of those dates due to plaintiff's April 13, 2026 deadline to file his motion for class certification. *Id.* (On April 10, 2026 plaintiff sought and obtained an extension of the class certification motion filing deadline to August 31, 2026. ROA 205.) Defendant's counsel replied the same day that defendant would not attend the deposition on February 20. *Id.* Plaintiff nevertheless appeared for the deposition on February 20 and took a certificate of nonappearance. *Id.* Ex. D. The transcript of that proceeding reflects that plaintiff's counsel stated: "Although this deposition was properly noticed, there have been no written objections to the deposition notice including the requests for production of documents, and the deponent did not produce documents to the 43 document requests in the notice of deposition." *Id.* Ex. D (at 5:3-7).

On March 2, 2026 plaintiff's counsel emailed defendant's counsel that plaintiff would take the deposition on March 17 and 24, 2026. Id. Ex. E. Defendant's counsel replied the same day that defendant would not appear for any deposition if plaintiff intended to add new parties. *Id.* Defendant's counsel then replied that his client was not available for the deposition on March 17 or March 24 after all. *Id.*; Vanderpool Decl. ¶ 15. Plaintiff's counsel asked for other available dates in March. Hyun Decl. Ex. E. The parties then exchanged more emails between March 2 and March 6, which can be summarized as: (i) defendant's counsel did not provide any other dates; (ii) plaintiff's counsel wrote that he would prefer to resolve this issue without motion practice; and (iii) defendant's counsel replied, "The problem Daniel is that you are pretty strident and demanding on dates that are simply not available." *Id.* Ex. E.

Plaintiff filed the instant motion on March 13, 2026.

Relevant law

Civil Procedure Code section 2025.410 states, in relevant part:

> (a) Any party served with a deposition notice that does not comply with Article 2 (commencing with Section

		2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served. (b) If an objection is made three calendar days before the deposition date, the objecting party shall make personal service of that objection pursuant to Section 1011 on the party who gave notice of the deposition. Any deposition taken after the service of a written objection shall not be used against the objecting party under Section 2025.620 if the party did not attend the deposition and if the court determines that the objection was a valid one. (c) In addition to serving this written objection, a party may also move for an order staying the taking of the deposition and quashing the deposition notice. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. The taking of the deposition is stayed pending the determination of this motion. Civ. Proc. Code § 2025.410. Section 2025.450 states, in relevant part: (a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (b) A motion under subdivision (a) shall comply with both of the following: (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and

		produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. *Discussion* Defendant argues plaintiff's motion should be denied because plaintiff allegedly did not meet and confer in good faith to attempt to resolve this dispute. As evidenced by the parties' correspondence, plaintiff repeatedly attempted to obtain a deposition date from defendant's counsel for defendant's PMK deposition, with no success. Those efforts constituted a sufficient effort under prior law to resolve this dispute. Effective January 1, 2026, however, a meet and confer declaration in support of a motion must state facts showing a reasonable and good faith attempt "either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Civ. Proc. Code § 2016.040(a). Plaintiff's counsel's declaration does not make this showing. Plaintiff's counsel's failure to comply with newly-amended section 2016.040(a) does not require denial of plaintiff's motion (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 434-35), although the court may consider it in evaluating the parties' respective sanctions requests. Civ. Proc. Code §§ 2023.010(i), 2023.020. Having reviewed all of the correspondence and other evidence submitted in support of and in opposition to the motion, the court finds that plaintiff's counsel's failure to comply with newly-amended section 2016.040(a) does not constitute reason to deny the motion. The parties next debate whether defendant's objections to the deposition notice were valid. This issue seems beside the point because neither party cites any law holding that service of valid objections to a PMK deposition notice forever absolves the objecting party of any obligation to appear for a deposition. Plaintiff's counsel's statement at the nonappearance that "there have been no written objections," while plainly wrong, is likewise beside point, including because plaintiff's counsel attached defendant's objections to his declaration filed in support of this motion. Hyun Decl. Ex. C. That being said, none of defendant's nonspecific and overbroad "General Objections" to the deposition notice constitutes good cause for the court to conclude the deposition should not occur or the examination topics should be preemptively modified. Objecting collectively to the entire deposition notice and its 21 topics and, moreover, doing so only "to the extent" the notice and/or unspecified topics seek various types of allegedly protected information is insufficient for the court to conclude defendants' "General Objections (Deposition)" have merit. Defendant cites no law holding that it need not appear for a PMK deposition. Indeed, defendant appears to concede that it must. Opp. (ROA 211) at 1:19, 5:23. Defendant is ordered to produce <u>by June 18, 2026</u> a PMK deponent(s) to address the topics identified in plaintiff's February 6, 2026 deposition notice. Defendant's request

		for a vague order "limit[ing] testimony to matters known or reasonably available to Pampanga" is denied. Plaintiff's request for sanctions is granted. Defendant Pampanga Food Company, Inc. shall pay sanctions in the amount of $2,060 to plaintiff by June 18, 2026. Defendant's request for sanctions is granted. Plaintiff Balbino Alvira shall pay sanctions in the amount of $350 to defendant by June 18, 2026. Civ. Proc. Code § 2023.020. Plaintiff to give notice.
3	Cervantes De Cabrera v. United Exchange Corp., et al. 2025-01479201	<u>Defendant Partners Personnel-Management Services, LLC's Motion to Compel Arbitration</u> <u>Defendants United Exchange Corp., Eugene Choi and Carol Choi's Joinder</u> Defendant Partners Personnel-Management Services, LLC ("Partners") moves for an order compelling arbitration of plaintiff Maria Cervantes de Cabrera's individual claim, dismissing plaintiff's class allegations, and staying plaintiff's nonindividual PAGA claim pending completion of the arbitration. Defendants United Exchange Corp., Eugene Choi and Carol Choi (together, the "United Exchange defendants") join Partners' motion. For the following reasons, Partner's motion is granted, and the United Exchange defendants' unopposed joinder is granted. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Id.* *Existence of arbitration agreement* A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1056. "The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; *Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden 'by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.' (*Espejo*, *supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330].' (*Condee*, *supra*, at pp. 218–219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence . . . . To bear this burden,

		the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Espejo*, *supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.)" *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (emphasis in original). When an opposing party disputes that he or she signed an arbitration agreement electronically, the petitioner has the burden of proving by a preponderance of the evidence that the electronic signature is authentic. *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; *see also Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067; *Espejo*, *supra*, 246 Cal.App.4th at 1060 ("[W]e conclude that defendants here met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing Espejo's electronic signature. Once Espejo challenged the validity of that signature in his opposition, defendants were then required to establish by a preponderance of the evidence that the signature was authentic."). The burden of authenticating an electronic signature is not great. *Fabian*, 42 Cal.App.5th at 1067. Partners carried its initial burden by submitting the declaration of Jennifer Rivas. Rivas states she is the Director of Systems and Support for Partners and that she has held that position for six years. Rivas Decl. (ROA 53) ¶ 1. Rivas states Partners is a staffing agency that operates across the country and that Partners placed individuals to work in California for defendant United Exchange Corporation. *Id.* ¶ 4. Rivas states that in her role as Director of Systems and Support, she is familiar with the processing procedures involved for new employee applicants and new hires, including plaintiff, such as collecting and storing employee onboarding records, which include arbitration agreements. *Id.* ¶ 2. Rivas states she reviewed plaintiff's personnel file to which Rivas has access in her role as Director of Systems and Support, and that plaintiff's personnel file shows plaintiff applied for employment with Partners and completed the onboarding documents in May 2024. *Id.* ¶¶ 5-6. Rivas states plaintiff was placed on a temporary work assignment at United Exchange from approximately June 2024 to November 15, 2024. *Id.* ¶ 6. Rivas states that at the time plaintiff applied for employment, Partners used a software system called Tempworks Enterprise to manage applicant onboarding and record retention. *Id.* ¶ 7. Rivas states Tempworks is a secured software platform and portal that permits applicants and/or employees to access employment-related documents remotely and to sign the documents digitally. *Id.* Rivas states plaintiff used Tempworks to access the onboarding documents by creating a unique personal account by validating her last name and the last 4 digits of her social security number. *Id.* ¶¶ 9-11. Rivas states that at "Mutual Voluntary Agreement for

Individual Arbitration" is one of the documents in the onboarding package that was provided to plaintiff to view, electronically sign and download. *Id.* ¶¶ 14-15. Rivas states plaintiff electronically signed the arbitration agreement on May 1, 2024 by clicking on a signing location and entering her name as her signature. *Id.* ¶¶ 15-16. Rivas states that Exhibit A to her is a true and correct copy of the arbitration agreement plaintiff electronically signed. *Id.* ¶ 15 & Ex. A.

Plaintiff did not submit any evidence with her opposition and in her opposition she does not raise a factual dispute as to the authenticity of her electronic signature. Plaintiff instead argues that defendant did not provide evidence of "system audit logs or IP metadata to authenticate the electronic signature." Opp. (ROA 66) 3:7-10. As stated above, the moving party bears its "initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature," and "need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330]." *Iyere*, 87 Cal.App.5th at 755. Partners met its initial burden and the burden thus shifted to plaintiff, the party opposing arbitration, to identify a factual dispute as to the agreement's existence. *Id.* Plaintiff, who as noted above did not submit any evidence in opposition to the motion, did not do so.

The court thus finds Partners carried its burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence.

The Federal Arbitration Act applies

Partners argues the Federal Arbitration Act (FAA) applies. The arbitration agreement states: "This Agreement is covered by and made pursuant to the Federal Arbitration Act (the 'FAA'), 9 U.S.C. § 1 *et seq.*, and shall be construed, interpreted, governed, and entered in accordance with the FAA." Rivas Decl. (ROA 53) Ex. A (at 2).

"The [Federal Arbitration Act] applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement." *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76; *see also Tuufuli v. West Coast Dental Administrative Services, LLC* (Cal. Ct. App. Jan. 13, 2026) No. B338584, 2026 WL 92021 (same); *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963 (same); *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 ("the presence of interstate commerce is not the only manner under which the FAA may apply. . . . [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement"). In addition, plaintiff does not dispute Partners' argument that the FAA applies. The court finds the FAA applies.

Unconscionability

		Plaintiff argues the arbitration agreement is unconscionable. In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, """generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening" the FAA' or California law." *Id.* at 125; *see AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339. "Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] 'The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' [Citation.] If the contract is adhesive, the court must then determine whether 'other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].'" *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *see also OTO*, 8 Cal.5th at 129-30. "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz,* 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402. Plaintiff argues the arbitration agreement is oppressive and surprising because it "was presented as part of the onboarding process, creating a take-it-or-leave it situation with no real opportunity for negotiation." Opp. (ROA 66) at 3:14-15. Plaintiff submitted no evidence describing the circumstances under which she received the agreement. In addition, the agreement states that signing the agreement is "voluntary," that arbitration "is not a mandatory condition of [plaintiff's] employment," and that plaintiff may "opt out" of the arbitration agreement by submitting a statement to Partners that plaintiff "wish[es] to opt out and not be subject to this Agreement." Rivas Decl. Ex. A (at 1, 3, 4). That said, the fact remains that the arbitration agreement is a preprinted multipage form agreement provided to plaintiff by her employer as part of the onboarding process. Rivas Decl. ¶ 14. The adhesive nature of the agreement is evidence of some modest degree of procedural unconscionability. *Sanchez*, 224 Cal.App.4th at 403. As noted above, substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO*, 8 Cal.5th at 129-30. The court focuses

		on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the nondrafting party's reasonable expectations. *Id*. at 130. Plaintiff argues the agreement is substantively unconscionable because it contains a class and representative action waiver, "which is one-sided and favors the employer by stripping collective enforcement mechanisms essential for Labor Code rights," and the waiver is purportedly "not enforceable under California law." Opp. (ROA 66) 3:20-24. Plaintiff is mistaken. As discussed above, the FAA, and not California law, applies. The class action waiver is therefore enforceable. *See*, *e.g.*, *Viking River Cruises v. Moriana* (2022), 596 U.S. 639, 651 ("'a party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party agreed to do so'") (italics in original); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352 (holding class action waivers are enforceable under FAA and California rule to contrary preempted); *Evenskaas v. California Transit, Inc*. (2022) 81 Cal.App.5th 285, 297-98. In addition, while a waiver of nonindividual PAGA claims is unenforceable (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 384; *see also Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1118; *Viking River*, 596 U.S. at 662), the agreement here states: "To the extent applicable law prohibits the enforcement of the Class and Representative Action Waiver with respect to representative claims under California's Private Attorney General Act ('PAGA'), California Labor Code § 2698 *et seq.*, such representative claims would not be covered by this Agreement, unless applicable law allows PAGA claims to be arbitrated, then, in such cases, You agree that all PAGA claims shall be subject to individual arbitration under this Agreement." Rivas Decl. (ROA 53) Ex. A (at 1). The agreement accordingly does not waive nonindividual PAGA claims and thus is not substantively unconscionable on that basis. Plaintiff contends the agreement is substantively unconscionable because it encompasses individual PAGA claims, which plaintiff asserts the law does not allow. Plaintiff is mistaken. The California Supreme Court has held that a plaintiff's individual PAGA claim(s) can be compelled to arbitration. *Adolph*, 14 Cal.5th at 1119 ("*Viking River* requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA"). Plaintiff argues the agreement's provisions regarding forum selection, fee allocation and discovery are substantively unconscionable because they allegedly are vague "and potentially limit Plaintiff's ability to vindicate statutory rights." Opp. at 4:3-6.

		Plaintiff further argues the agreement does not "ensure adequate discovery or procedural safeguards." *Id.* The agreement is not vague with respect to forum selection, fees or discovery, and it provides for adequate discovery. The agreement states the "arbitration shall take place in California, in the county in which [the employee] regularly perform(ed) [their] work." Rivas Decl. (ROA 53) Ex. A (2). The agreement states "[t]he Company will pay the arbitrator's fees and any other fees or expenses required by law." *Id.* The agreement states "[t]he parties shall be entitled to engage in reasonable discovery (which is the mutual exchange of information, evidence, and/or known facts of a case or dispute) subject to applicable law current at the time of the proposed arbitration." *Id.* *See Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505 ("*Armendariz* stands for the principle that an arbitration agreement required as a condition of employment must generally permit employees sufficient discovery to adequately arbitrate any statutory claims"). Plaintiff does not identify any procedural safeguards purportedly missing from the agreement. In addition, the agreement states: **Arbitration Procedures.** All arbitrations shall be conducted by a single neutral arbitrator through a separate third-party arbitrator and/or arbitration entity to be mutually agreed upon by the Parties. The arbitrator shall be selected by mutual agreement of both [the employee] and the Company or in accordance with then-applicable rules of the arbitration entity mutually selected by [the employee] and the Company. The arbitration shall be governed by the arbitrator's or arbitration entity's then-current rules and procedures, subject to applicable law. Rivas Decl. Ex. A (at 2). Plaintiff next argues the agreement "allows third-party beneficiaries, such as affiliates and clients, to enforce arbitration, creating an imbalance that benefits the employer and its associates without reciprocal advantages for employees." Opp. at 4:8-9. The agreement states: **Third-Party Enforcement.** Any Affiliate, Client, or Customer of the Company shall be deemed a third-party beneficiary under this Agreement for purposes of being able to enforce this Agreement with regard to any claims between [the employee] and such Affiliate of the Company, and such Affiliate may enforce this Agreement to the maximum extent permissible by law or equity, pursuant to any one or combination of legal or equitable theories including, but not limited to, agency, equitable estoppel, and/or third party beneficiary, as applicable. Rivas Decl. Ex. A (at 2). Plaintiff does not cite any law holding that provisions of this nature render an arbitration agreement substantively unconscionable. Moreover, some cases hold that nonsignatories may compel arbitration under some circumstances. *See, e.g.*, *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 785-86 ("Courts recognize exceptions to the general rule which allow

		nonsignatories to compel arbitration of a dispute arising out of the scope of the agreement”). Plaintiff next argues her claims for noncompliant wage statements and personnel file access statutory rights are “not suited for arbitration” because “[t]hese rights are designed for summary enforcement.” Opp. at 4:13-15. Plaintiff cites no legal authority supporting this argument and, more specifically, no legal authority holding that these claims may not be compelled to arbitration when the FAA applies. *The class allegations are dismissed without prejudice* The arbitration agreement contains a class action waiver that states, in relevant part: “You hereby voluntarily waive any right to participate, in any manner, in a class, collective, or representative action.” Rivas Decl. Ex. A (at 1). As discussed above, the FAA applies. The class action waiver is therefore enforceable. *See*, *e.g.*, *Viking River Cruises v. Moriana* (2022), 596 U.S. 639, 651 (“‘a party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party *agreed* to do so’”) (italics in original); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352 (holding class action waivers are enforceable under FAA and California rule to contrary preempted); *Evenskaas v. California Transit, Inc.* (2022) 81 Cal.App.5th 285, 297-98. The class allegations are dismissed without prejudice. *The United Exchange defendants’ joinder is granted* As stated above, the United Exchange defendants join Partners’ motion. ROA 61. Plaintiff did not oppose the joinder. The joinder is granted. Partners’ Request for Judicial Notice (ROA 50) is denied as the document was not material to the disposition of the motion. *The superior court action is stayed* The superior court action, including the nonindividual PAGA claim(s), is stayed pending completion of the arbitration. An ADR Review hearing is scheduled for <u>December 3, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint ADR Review hearing statement at least five court days before the hearing. Defendant Partners Personnel-Management Services, LLC to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed May 21, 2026 (ROA 74). In light of the court’s concurrent ruling on defendant Partners Personnel-Management Services, LLC’s motion to compel arbitration, and the United Exchange defendants’ joinder therein, the status conference

<table>
<tr><td></td><td></td><td>scheduled for May 28, 2026 at 2:00 p.m. in Department CX105 is vacated.

Clerk to give notice.</td></tr>
<tr><td>4</td><td>Corona v. West American Rubber Company, LLC

2024-01383622</td><td><u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u>

The court has reviewed and considered the papers filed, including the Supplemental Tran Declaration filed May 20, 2026 (ROA 112), in support of plaintiff's motion for final approval of a $1,750,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows:

$5,000.00 for enhancement award to plaintiff;

$583,333.33 for attorneys' fees;

$23,299.52 for litigation costs (see No. 1 below);

$6,500.00 for settlement administration costs; and

$100,000.00 total PAGA penalties ($75,000.00 to the LWDA).

1. In the January 15, 2026 order (ROA 83), the court stated that at final approval plaintiff's counsel should explain the reasonableness of the seemingly high BRG charges. Plaintiff's counsel has not done so. The court accordingly deducts $6,302.00 in costs for 13.70 hours spent by BRG personnel ($460 per hour) "prepar[ing] data." Moen Decl. (ROA 104) Ex. 4. The court also will not award "anticipated" costs ($43.86).

2. The brief contains apparently erroneous and at best unclear explanation and information regarding the end date of the class period and the class members to whom notice was sent. See e.g., Brief (ROA 106) at 1 n.2, 3:12-20, 5:14-15. The Tran Declaration, however, clearly explains the class period end date and the notice process and the class members to whom notice was sent, and provides sufficient information for the court to understand and evaluate the class period end date and the notice process and to determine that both are adequate.

Plaintiff is ordered to file and serve <u>by June 4, 2026</u> a copy of the opt-out notice received by the settlement administrator (Tran Decl. (ROA 96) Ex. B) sufficiently unredacted that the name of the class member who requested exclusion is visible. Other personal information need not be unredacted. The class member should also be identified by name in the proposed order and judgment. Plaintiff is ordered to file and serve <u>by June 4, 2026</u> a revised proposed order and judgment consistent with this ruling.

The final accounting hearing is scheduled for <u>March 11, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The</td></tr>
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		final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
5	Corral v. Penn Elcom, Inc., et al. 2023-01363928	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a $150,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: $5,000.00 for enhancement award to plaintiff (not to exceed); $45,000.00 for attorneys' fees (not to exceed); $15,000.00 for attorneys' costs (not to exceed); $4,500.00 for settlement administration fees (not to exceed); and $10,000.00 total PAGA penalties ($7,500.00 to LWDA). Plaintiff is ordered to file and serve <u>by June 4, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) fully executed copies of the amendments to the settlement agreement <u>signed by the parties</u>; and (3) the notice packet (in English and Spanish) (revised as stated above). Only <u>one</u> copy of the notice should be attached to the proposed order as an exhibit. Duplicate and/or superseded copies of the notice packet should not be attached to the proposed order as exhibits. The final approval hearing is scheduled for <u>October 8, 2026 at 2:00 p.m</u>. in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. *See* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
6	Gutierrez v. Adecco USA, Inc. 2020-01123754	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers and the Supplemental Schmidt Declaration (ROA 264), filed in support of plaintiff's motion for approval of a $280,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; $84,000.00 for attorneys' fees; $29,693.64 for attorneys' costs;

		$14,950.00 for settlement administration fees; and $151,356.36 total PAGA penalties ($113,517.27 to LWDA). Plaintiff is ordered to submit by June 4, 2026 a proposed order and judgment (including the above amounts) with all exhibits attached (settlement agreement; amendment(s) thereto; and notice letter (including the above amounts) in English and Spanish). Only one copy of the notice letter should be attached to the proposed order and judgment. Duplicate and/or superseded copies of the notice letter should not be attached to the proposed order and judgment as exhibits. The final accounting hearing is scheduled for May 27, 2027 at 9:00 a.m. in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
7	Meislik v. Lamkone Restaurants, Inc., et al. 2024-01391500	Plaintiff's Motion for Approval of PAGA Settlement "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." *Arias v. Superior Court* (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a $100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers submitted to the LWDA? The proof of service (ROA 67) does not include the LWDA, and Exhibit 3 to the Baker Declaration (ROA 69) states that only the "Proposed Settlement" was submitted to the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. As to the settlement: 2. The parties should provide the average, high and low individual PAGA payments. 3. Plaintiff should state her total compensation to be received (excluding any enhancement award and including for any individual claims). Plaintiff should also submit a copy of the

		individual settlement agreement(s) referred to in paragraph 33 of the Baker Declaration (ROA 69). 4. The settlement agreement states plaintiff seeks $5,000 from the gross settlement amount in part to compensate plaintiff "for her general release of claims." Settlement Agreement ¶ 3.2.3. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court will not approve a settlement that provides a payment to plaintiff from the gross settlement amount in exchange for a general release. 5. The PAGA Period must have a specific end date to enable the court to evaluate the fairness of the settlement. Settlement Agreement ¶ 1.20. 6. The "Released Parties" provision in paragraph 1.27 is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "agents," "affiliates, partners, attorneys," "insurers," and "all other legal entities." In addition, the word "include" should be replaced with "are." 7. The phrase "Aggrieved Employees" should be inserted in paragraph 5 after "Plaintiff" and before "and PAGA Counsel." 8. The following phrase should be removed from the release in paragraph 5.2: "that are based on the facts of the Action and the PAGA Notices submitted by Plaintiff to the LWDA." 9. The second-to-last sentence in paragraph 8 should be revised to remove the reference to shortening the "release period," as the court will not approve a settlement that permits defendants to shorten the PAGA Period. 10. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. The parties should explain why the settlement administrator's seemingly high bid ($9,000) is reasonable for this case. 11. Plaintiff's counsel seeks attorneys' fees totaling 35% of the Total Settlement Amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here.

		12. Plaintiff's counsel seeks litigation costs in the amount of $5,927.32. Baker Decl. (ROA 69) Ex. 3. Parking charges are not recoverable and should be removed. Plaintiff's counsel should explain the necessity of each "case pull fee" or remove them. 13. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 14. The parties (plaintiff and defendant) should state in declarations filed with the court whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in the action being settled. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural statues of the case, and describe the impact of the settlement on that case. <u>As to the notice letter</u>: 15. The notice letter should be revised consistent with the above. 16. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 17. In the second sentence of the fourth paragraph of section I, "It maintains" should be replaced with "They maintain," and "it was" should be replaced with "they were." 18. The effective date of the aggrieved employees' release stated in two places in section III is inconsistent with the settlement agreement and should be revised. 19. The released parties identified in section III are inconsistent with the settlement agreement and must, in any event, be revised as stated above. 20. The aggrieved employees' release in section III is inconsistent with the settlement agreement and should be revised. 21. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and

		should state that judgment will be posted on the settlement administrator's website for at least 180 days. 22. Should the notice letter be provided in any language other than English? If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. As to the proposed order and judgment (ROA 63): 23. The proposed order and judgment should be revised consistent with the above. 24. Counsel information should be removed from the caption page of the proposed order and judgment. 25. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). 26. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 27. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 28. The last paragraph of the proposed order and judgment should include reference to Civil Procedure Code section 664.6. 29. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to October 15, 2026 at 2:00 p.m. in Department CX105 to permit the parties to address and respond to the above issues. *See also* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall

		provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. **No earlier hearing date is available for this motion.**
8	Oliveros v. Shark Island Yacht Club, et al. 2021-01210803	Plaintiff's Motion for Approval of PAGA Settlement "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." *Arias v. Superior Court* (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a $125,569.93 PAGA settlement. The court has the following questions and comments: As to the settlement: 1. The parties to the settlement are plaintiff and defendant Shark Island Yacht Club. Defendant Patrick Allen Ramsey is in default. ROA 18. Plaintiff states he intends to dismiss Ramsey if and when Shark Island pays the settlement and a second sum plaintiff alleges is owed. Ginez Decl. (ROA 242) ¶ 27. Defendants Anton Anich and Brianna N. Warren also remain at issue. The court will not grant the approval motion and enter judgment thereon until plaintiff has resolved his claims against the individual defendants in some manner. 2. Why are the individual PAGA payments calculated "according to the total number of pay periods the Aggrieved Employee allegedly suffered a meal period violation, meal period premium pay violation, inaccurate wage statement violation, and/or final wage payment violation? Second Amendment to Settlement Agreement ¶ 14. How does this manner of calculation differ from calculating the individual PAGA payments according to the number of pay periods the aggrieved employee worked during the PAGA Period? 3. The aggrieved employees' release in paragraph V.1 of the second amendment to the settlement agreement is overbroad. Releases by aggrieved employees other than plaintiff should be limited the civil penalties available under PAGA based on the facts alleged in the operative complaint

and the notice letter to the LWDA. In addition, the third-to-last sentence in paragraph V.1 should be removed.

4. The "Released Parties" provision in paragraph V.2 of the second amendment to the settlement agreement is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "affiliates, partners," "franchisors, and trusts," and "agents, attorneys, stockholders, fiduciaries, and other service providers including, but not limited to, O'Hagan Meyer."

5. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case.

6. Plaintiff's counsel seeks attorneys' fees totaling 33.33% of the gross settlement amount. Absent unique circumstances, and considering the manner in which the approval motion has been handled (*see, e.g.*, ROA 209) the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here.

7. Plaintiff's counsel seeks litigation costs in the amount of $12,933.33, comprised of $4,220.83 in litigation costs and $8,712.50 in purported expert fees incurred by plaintiff's counsel's sister, Olga Ginez.

   Plaintiff has not submitted any persuasive evidence that Olga Ginez qualifies as an expert to analyze payroll records and prepare damages calculations. Olga Ginez's declaration states that she is "retired," but still does "some consulting, bookkeeping, financial reporting, and general accounting services for individuals and businesses." Olga Ginez Decl. (ROA 234) ¶ 1. Olga Ginez states she has a bachelor's degree in criminal justice with a minor in business administration, and that her "career in accounting" includes having "audited profit and loss statements, prepared, and filed payroll and sales tax returns, and reconciled balance sheet accounts for a variety of businesses, including race car builder and auto sales, small construction companies, hair salons, donut shops, and fast food and full service restaurants," and "managing extensive amounts of data using Microsoft Access and Excel and utilizing reports to file forms and documents with state regulators including the Departments of Insurance, Corporations, and Securities in all 50 states." *Id.* ¶ 2. Plaintiff has not submitted evidence of Olga Ginez's "special knowledge, skill, experience, training, or education" sufficient to qualify her as an expert

		on the calculation of damages in a wage and hour action. Evid. Code § 720(a). Olga Ginez's relevant experience appears to consist of the six times in a 10-year period that plaintiff's counsel (her brother) retained her to "audit time and payroll data and prepare damage calculations" in wage and hour actions. *Id.* ¶ 3. In addition, 102.50 hours (i.e., approximately 13 days of work at 8 hours per day) spent on this action with approximately 33 aggrieved employees and a one-year PAGA period appears excessive and unreasonable, especially where Olga Ginez's time entries reflect that significant portions of her time were spent "compiling, summarizing and comparing" payroll data and "compiling date [*sic*], etc." Olga Ginez Decl. (ROA 234) Ex. 3. Plaintiff's counsel should provide additional information sufficiently establishing Olga Ginez's qualifications as an expert and explaining why Olga Ginez reasonably spent 102.50 hours on her work related to this case. 8. Plaintiff should submit a copy of the settlement agreement for the settlement of his individual claims. Ginez Decl. ¶ 21; Oliveros Decl. (ROA 232) ¶ 11. <u>As to the notice letter</u>: 9. The notice letter should be revised consistent with the above. 10. The word "vigorously" should be removed in section of the notice letter. 11. The fourth paragraph of section 6 should be removed. 12. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. 13. Should the notice letter be provided in any language other than English? See Green Decl. (ROA 236) Ex. B (charge for Spanish translation). If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 254)</u>: 14. The proposed order and judgment should be revised consistent with the above.

		15. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 16. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 17. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to October 15, 2026 at 2:00 p.m. in Department CX105 to permit the parties to address and respond to the above issues. *See also* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. **No earlier hearing date is available for this motion.**
9	Reyna v. Eagle Community Credit Union 2021-01225885	Plaintiff's Motion for Approval of PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a $150,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; $37,500.00 for attorneys' fees; $12,857.47 for attorneys' costs; $4,138.00 for settlement administration fees; and

		$95,504.53 total PAGA penalties ($71,628.40 to LWDA). Plaintiff is ordered to submit by June 4, 2026 a proposed order and judgment (including the above amounts) with all exhibits attached (settlement agreement; three amendments thereto; and notice letter (including the above amounts)). The final accounting hearing is scheduled for February 4, 2027 at 9:00 a.m. in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Rodgers v. No Ordinary Moments, Inc. 2023-01349601	Off calendar.
11	Rodriguez v. Han.Sam Corp dba River's Edge Pharmacy 2026-01542228	Defendant Han.Sam Corp dba River's Edge Pharmacy's Motion to Compel Arbitration Defendant Han.Sam Corp dba River's Edge Pharmacy moves for an order compelling plaintiff Cindy Rodriguez to arbitrate her individual claims and dismissing her class allegations. For the following reasons, defendant's motion is denied. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Id*. *Existence of an arbitration agreement* A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1056. "The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; *Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden 'by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.' (*Espejo*, *supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330].' (*Condee*, *supra*, at pp. 218–219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual

		dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Espejo*, *supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.)" *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (emphasis in original). When an opposing party disputes that he or she signed an arbitration agreement electronically, the petitioner has the burden of proving by a preponderance of the evidence that the electronic signature is authentic. *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; *see also Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067; *Espejo*, *supra*, 246 Cal.App.4th at 1060 ("[W]e conclude that defendants here met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing Espejo's electronic signature. Once Espejo challenged the validity of that signature in his opposition, defendants were then required to establish by a preponderance of the evidence that the signature was authentic."). The burden of authenticating an electronic signature is not great. *Fabian*, 42 Cal.App.5th at 1067. Defendant carried its initial burden by submitting the declaration of Genevieve Benjamin. Benjamin, who states she is defendant's CEO, states that her job duties "include providing leadership and management, spearhead[ing] development, communication, and implementation of growth strategies, collaboration with the executive team, leading the management team, and acting as lead 'client-care' officer." Benjamin Decl. (ROA 22) ¶¶ 1, 2. Benjamin states that on or about June 12, 2023 defendant extended plaintiff a written offer letter for employment, which plaintiff signed and accepted. *Id.* ¶ 3. Benjamin states that enclosed with the offer letter was a "Dispute Resolution Agreement" (DRA), which Benjamin states is a "voluntary agreement that expressly provides that disputes arising out of or relating to Plaintiff's employment would be resolved through final and binding arbitration." *Id.* Benjamin states that a true and correct copy of plaintiff's signed DRA is attached to her declaration as Exhibit 1. *Id.* & Ex. 1. Benjamin states that the DRA is maintained in plaintiff's personnel file. *Id.* ¶ 6. Exhibit 1 to the Benjamin Declaration consists of an offer letter with enclosed DRA and Confidentiality Agreement. Benjamin Decl. Ex. 1. The offer letter is dated June 12, 2023 and is addressed to "Cindy Rodriguez"; it bears an electronic signature under "acknowledgment." *Id.* The DRA and Confidentiality Agreement are both dated June 12, 2023, and each bears an electronic signature next to or above the typewritten name "Cindy Rodriguez." *Id.* Contrary to plaintiff's claim, Benjamin's declaration and its exhibit carried defendant's initial burden. *See Iyere*, 87 Cal.App.5th at 755

		(the moving party bears its "initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature," and "need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330]"). The burden thus shifted to plaintiff, the party opposing arbitration, to identify a factual dispute as to the agreement's existence. *Id.* Plaintiff states in her declaration submitted in opposition that (i) she "do[es] not recall ever being sent, presented with, reviewing, or signing the purported arbitration agreement . . . at any time, and (ii) she "do[es] not recognize the signature" on the arbitration agreement. Rodriguez Decl. (ROA 31) ¶¶ 3, 4. Plaintiff's statements are sufficient to create a factual dispute as to the authenticity of her electronic signature. *See Espejo*, 246 Cal.App.4th at 1054. The burden thus shifted back to defendant, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the electronic signature. To attempt to carry this burden, defendant submitted a supplemental declaration from Benjamin with its reply. In her supplemental declaration, Benjamin states: "Employees for the Company sign documents electronically, and the Company receives a digital receipt of that signature. Here, the Company received a digital receipt when Plaintiff digitally signed the [DRA] on June 23, 2023, agreeing to arbitrate claims against the Company." Supp. Benjamin Decl. (ROA 41) ¶ 2. Benjamin states that a true and correct copy "of the digital receipt received from the Company when Plaintiff signed the [DRA]" is attached to her supplemental declaration as Exhibit 2. *Id.* & Ex. 2. Exhibit 2 to the Supplemental Benjamin Declaration is a 5-page document; the first page bears a "DocuSign" logo at the top. The first two pages appear to be some sort of printout reporting "Certificate of Completion," "Record Tracking," and "Signer Events." *Id.* The typewritten name "Cindy Rodriguez" appears in the "Signer Events" section, as does an electronic signature and "6/12/2023" in several places. *Id.* The name "Hala Ortega," which also appears on the offer letter, DRA and Confidentiality Agreement, also appears in the "Signer Events" section, along with an electronic signature. *Id.* The other three pages of Exhibit 2 are entitled "Electronic Record and Signature Disclosure." *Id.* The top left corner of the first page states: "Electronic Record and Signature Disclosure created on: 7/10/2020 1:56:33 PM [¶] Parties agreed to: Cindy Rodriguez, Hala Ortega." *Id.* Benjamin's supplemental declaration is insufficient to carry defendant's shifted burden of proving, by a preponderance of the evidence, the authenticity of the electronic signature. As an initial matter, Benjamin states in her supplemental declaration that plaintiff electronically signed the DRA on June 23, 2023. Supp. Benjamin Decl. ¶ 2. That is not the date stated in Benjamin's initial declaration (ROA 22, ¶ 4) and it is not the date on the DRA. Benjamin Decl. (ROA 22) Ex. 1. In addition, Benjamin's supplemental declaration does not set forth facts showing, *inter*

alia, that only plaintiff could have affixed her electronic signature to the DRA, such as by means of a unique username and password, or how the "digital receipt" attached to the Supplemental Benjamin Declaration purportedly shows that plaintiff, as opposed to someone else, electronically signed the DRA. Indeed, the Supplemental Benjamin Declaration does not explain the documents attached thereto as Exhibit 2 at all, including why the 3-page "Electronic Record and Signature Disclosure" states Cindy Rodriguez and Hala Ortega purportedly agreed to it on July 10, 2020, i.e., almost 3 years before defendant states plaintiff accepted its employment offer and signed the DRA.

In sum, for the foregoing reasons, defendant did not carry its burden of proving by a preponderance of the evidence that plaintiff electronically signed the DRA. Even if defendant had done so, however, the agreement is unconscionable, as discussed below.

The Federal Arbitration Act applies

Defendant argues the Federal Arbitration Act (FAA) applies. The DRA states: "This Agreement is governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. ('FAA') and evidences a transaction involving commerce. The Parties acknowledge and agree that the FAA applies to this Agreement because it is a contract involving interstate commerce and the work to be performed by Employee affects commerce between the states." Benjamin Decl. (ROA 22) Ex. 1 (DRA, at 1-2).

"The [Federal Arbitration Act] applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement." *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76; *see also Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 340 Cal.Rprt.3d 858, 862 (same); *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963 (same); *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 ("the presence of interstate commerce is not the only manner under which the FAA may apply. . . . [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement"). In addition, plaintiff does not dispute the FAA applies. The court finds the FAA applies.

Unconscionability

Plaintiff argues the arbitration agreement is unconscionable. In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, """generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening" the FAA' or California law." *Id.* at 125; *see AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

"Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] 'The term [contract of adhesion] signifies a standardized contract, which, imposed and

		drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' [Citation.] If the contract is adhesive, the court must then determine whether 'other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].'" *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *see also OTO*, 8 Cal.5th at 129-30. "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz,* 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402. The arbitration agreement is a contract of adhesion. The arbitration agreement is a preprinted form agreement imposed as condition of employment as stated in the offer letter. Benjamin Decl. Ex. 1 (Offer Letter at 1) ("This offer of employment is also conditioned on . . . your execution of and agreement to each of the terms and conditions of the Company's Confidentiality Agreement and Dispute Resolution Agreement, copies of which are enclosed with this letter"). The adhesive nature of the agreement is evidence of some degree of procedural unconscionability. *Sanchez*, 224 Cal.App.4th at 403. Defendant argues the DRA is voluntary and "not a condition of employment" because the DRA so states. Benjamin Decl. Ex. 1 (DRA at 1, 4). The DRA does so state, but, as stated above, the offer letter states the contrary. The contradiction in terms between the offer letter and the DRA on this point is evidence of some degree of procedural unconscionability. In addition, defendant does not dispute that the DRA is a preprinted form agreement drafted by defendant. As noted above, substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO*, 8 Cal.5th at 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the nondrafting party's reasonable expectations. *Id*. at 130. Plaintiff argues the arbitration agreement is substantively unconscionable pursuant to *Cook v. University of Southern*

		California (2024) 102 Cal.App.5th 312. In *Cook*, the court held that "[a]n arbitration agreement of infinite duration [that] requires an employee to arbitrate all claims against the employer, its agents, affiliates, and employees irrespective of whether they arise from the employment relationship" is unconscionable. *Id.* at 316. The arbitration agreement in *Cook* required arbitration of "'all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.'" *Id.* at 321. As the *Cook* court stated, "[t]he plain language of the agreement requires Cook to arbitrate claims that are unrelated to her employment with USC." *Id.* The *Cook* agreement also "survived indefinitely" following Cook's termination of employment. *Id.* at 325; *see id.* ("The agreement expressly states that it 'shall survive the termination of Employee's employment, and may only be revoked or modified in a written document that expressly refers to the "Agreement to Arbitrate Claims" and is signed by the President of the University'"). In addition, the *Cook* agreement lacked mutuality because it required Cook to arbitrate any and all claims she might have against her employer "'or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise,'" but it did not require the employer's "'related entities'" to arbitrate their claims against Cook. *Id.* at 326. Based on these provisions, the court affirmed the trial court's order finding the arbitration agreement unconscionable. The court also affirmed the trial court's finding that unconscionability permeated the arbitration agreement as a whole and its refusal to sever the unconscionable provisions. The DRA contains provisions similar to those found unconscionable in *Cook*. The first paragraph of the DRA states: "To the fullest extent permitted by applicable law, the undersigned parties both agree that *any and all disputes* between Employee and HanSamCorp. Dba RE Pharmacy (the 'Company'), shall be resolved solely through binding arbitration pursuant to this agreement." Benjamin Decl. Ex. 1 (DRA at 1) (italics added). The second paragraph of the DRA states: "This Dispute Resolution Agreement ('Agreement') applies to any dispute arising out of or related to Employee's employment with the Company or termination of employment (including claims alleging wrongful conduct by coworkers/employees); applies both to claims made by Company against Employees and by Employee against Company; and shall survive after the employment relationship terminates."

		Benjamin Decl. Ex. 1 (DRA at 1). The sixth paragraph of the DRA states: "Except as it otherwise provides, this Agreement also applies, *without limitation*, to disputes regarding the employment relationship, trade secrets, unfair competition, compensation, breaks and rest periods, termination, or harassment and claims arising under the Uniform Trade Secrets Act, Civil Rights Act of 1964, Americans With Disabilities Act, Age Discrimination in Employment Act, Family Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act, Genetic Information Non-Discrimination Act, and state statutes, if any, addressing the same or similar subject matters, *and all other state statutory and common law claims*." Benjmain Decl. Ex. 1 (DRA at 1) (italics added). Plaintiff argues the DRA is unconscionably overbroad because it encompasses claims unrelated to plaintiff's employment. Defendant replies that "[t]he DRA is directed to disputes arising out of or related to Plaintiff's employment relationship, including compensation, wage claims, breaks and rest periods, termination, statutory claims, and common law employment-related claims." Reply (ROA 43) at 7:4-6. The DRA does apply to employment-related claims. It also, however, states that it applies to "any and all disputes" between an employee and defendant, and that it applies "without limitation" to "disputes regarding . . . all other state statutory and common law claims." The DRA plainly extends to claims unrelated to plaintiff's employment. The arbitration agreement contains other problematic provisions. The DRA states: "Employee acknowledges that this Agreement applies to all of Company's related and affiliated entities, shareholders, officers, directors, and employees." Benjamin Decl. Ex. 1 (DRA at 1). The meaning of this provision is unclear, which alone is troublesome, as an arbitration agreement should be written so as to be understood by its signatories. The parties appear to agree, however, that this provision should be interpreted to require an employee to arbitrate all covered claims against defendant and defendant's related and affiliated entities, shareholders, officers, directors, and employees. *See* Opp. at 13:24-27; Reply at 6:23-7:3. In that case, as in *Cook*, the DRA lacks mutuality. The DRA requires plaintiff to arbitrate "any and all disputes" she may have against defendant or its related and affiliated entities, shareholders, officers, directors and employees, but it does not require these defendant-related entities and people to arbitrate their claims against plaintiff. Defendant does not attempt to justify this one-sidedness, other than to argue unpersuasively that "[t]he inclusion of related entities, officers, directors, and employees does not create the type of unfairly one-sided forum Plaintiff describes." Reply at 7:1-2; *see Armendariz*, 24 Cal.4th at 117–18 ("As has been recognized "'unconscionability turns not only on a 'one-sided' result, but also on an absence of 'justification' for it.'"'").

Plaintiff also argues the agreement is unconscionable because it is purportedly of infinite duration. The *Cook* court found substantively unconscionable a provision stating that the agreement "shall survive the termination of Employee's employment, and may only be revoked or modified in a written document that expressly refers to the 'Agreement to Arbitrate Claims' and is signed by the President of the University." *Cook,* 102 Cal.App.5th at 317. The court rejected USC's argument that the agreement was not indefinite but rather "terminable at will after a 'reasonable time.'" *Id.*

Generally, contracts that do not specify a term of duration are terminable at will. *Reigelsperger v. Siller* (2007) 40 Cal.4th 574, 580. In addition, a contract will only be deemed terminable at will after a reasonable period of time if it has neither an express nor implied term of duration. *Zee Medical Distributor Assn. Inc. v. Zee Medical, Inc.* (2000) 80 Cal.App.4th 1, 10. The contract in *Zee* contained a provision stating the contract "shall continue" until specified grounds for termination arose. *Id.* The *Zee* court held the contract contained "a valid, express contractual term of duration" and the termination provisions in the contract "clearly indicate the parties did not contemplate termination at will." *Id.* at 11.

Relying on *Zee,* the *Cook* court found "[t]he arbitration agreement specifically provides that it will survive unless and until Cook and USC's president specifically terminate the agreement in a writing, signed by both parties, which expressly mentions the arbitration agreement," and therefore, because there was an express term of duration, the agreement was not terminable at will after a reasonable time. *Cook,* 102 Cal.App.5th at 326. The court affirmed the trial court's finding that the duration of the arbitration agreement was substantively unconscionable. *Id.*

The DRA states that it "shall survive after the employment relationship terminates." Benjamin Decl. Ex. 1 (at 1). This provision is not an express term of duration. This argument does not support a finding of substantive unconscionability.

Plaintiff also argues DRA is unconscionable because it requires plaintiff to waive PAGA claims. The "Class Actions and Representative Actions" section of the DRA states:

"To the maximum extent permitted by law and with the exception of charges filed with the National Labor Relations Board, Employee acknowledges and agrees that Employee does not have the right or authority to pursue any claim against the Company in the form of a class action, *representative action* (*including individual claims pursued under the California Labor Code's Private Attorney General Act of 2004, Cal. Lab. Code § 2698 et seq. ('PAGA')*), or collective action on behalf of any current or former employees of the Company, the general public, or anyone else alleged to be similarly situated to Employee.

"Employee's agreement to waive his or her ability to pursue any class, *representative*, collective action or *individual PAGA claims* against the Company *applies to any and all action filed in a state or*

		federal court of law as well as in an arbitral forum. The Parties agree that PAGA claims remain individually arbitrable if the representative action waiver is found invalid under state or federal law." Benjamin Decl. Ex. 1 (DRA at 3). An employee's right to bring a PAGA action is unwaivable (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 383; *see also Navas v. Fresh Venture Foods, LLC* (2022) 85 Cal.App.5th 626, 635 ("Employers may not force employees to waive their right to bring a PAGA action")), and a prohibition on representative actions is substantively unconscionable. *Hasty v. American Automobile Association* (2023) 98 Cal.App.5th 1041, 1063 ("The ban on *all* representative Act actions thus remains unconscionable because it requires an employee to waive a right that is not waivable.") (italics in original). Thus, the DRA's purported waiver of an employee's right to bring PAGA claims in individual and representative capacities is unconscionable. The inclusion of a carve-out for arbitration of individual PAGA claims, which is inconsistent with the DRA's express waiver of individual PAGA claims in all forums including arbitration, does not cure the unconscionability of the waiver. Plaintiff also argues the Confidentiality Agreement defendant presented with the DRA and the offer letter renders the DRA unconscionable. Contrary to defendant's claim, """[u]nder Civil Code section 1642, it is the general rule that several papers relating to the same subject matter and executed as part of substantially one transaction, are to be construed together as one contract [citation]."'" *Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 490. "According to that rule, documents executed together as part of a single transaction are construed together, even if they do not expressly refer to one another." *Id.* The Confidentiality Agreement and the DRA should be read together. Defendant asserts plaintiff electronically signed the agreements on the same day as part of the same transaction. Benjamin Decl. Ex. 1. Accordingly, unconscionability in the Confidentiality Agreement can affect whether the DRA is unconscionable. *Alberto*, 91 Cal.App.5th at 491; *see also id.* at 492 ("[S]ince the two agreements were part of a single transaction (Alberto's hiring and the dispute resolution procedure applicable to Alberto) unconscionability in the Confidentiality Agreement is relevant in determining whether the parties' agreement to arbitration was unconscionable."); *Silva v. Cross Country Healthcare, Inc.* (2025) 111 Cal.App.5th 1311, 1322-23. In light of the foregoing discussion regarding the DRA, however, the court need not reach plaintiff's arguments that the Confidentiality Agreement also renders the DRA unconscionable. *Severance* The DRA contains a severance clause: "The provisions of this Agreement are severable. If any provision of this Agreement or its application is held invalid, that invalidity shall not affect other

		provisions or applications that can be given effect without the invalid provision or application." Benjamin Decl. Ex. 1 (DRA at 4). "If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract; (2) sever any unconscionable clause; or (3) limit the application of any clause to avoid unconscionable results. [Citation.] The 'strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement.' [Citation.] Though the 'statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement,' it 'also appears to contemplate the latter course only when an agreement is "permeated" by unconscionability.'" *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 513. As discussed above, several aspects of the DRA are unconscionable. Defendant argues the court should sever any unconscionable provisions because "the central purpose of the DRA is lawful: to require bilateral arbitration of covered employment disputes." Reply at 8:17-18. To the contrary, as discussed above, the DRA appears drafted to require plaintiff to arbitrate an array of claims she might have against defendant and an undefined list of other entities and people, with defendant able to compel arbitration of claims against it and the other entities and people, and plaintiff only able to compel arbitration of claims by defendant against her. In addition, the agreement contains a plainly unenforceable waiver of an employee's right to bring PAGA claims. Remedying the deficiencies here would require substantive rewriting of the DRA to limit and contradict its plain language. Under these circumstances, the court declines to sever the unconscionable provisions and declines to enforce the agreement. Plaintiff's Evidentiary Objections (ROA 35) are overruled. Plaintiff to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed May 20, 2026 (ROA 37). The May 28, 2026 status conference is continued to <u>September 17, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
12	Thompson v. RC USA Holdings, Ltd., et al. 2023-01316096	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a $270,000 class action and PAGA settlement. The court grants the motion as follows:

		$5,000.00 for enhancement award to plaintiff (not to exceed); $81,000.00 for attorneys' fees (not to exceed); $15,500.00 for attorneys' costs (not to exceed); $8,500.00 for settlement administration fees (not to exceed); and $15,000.00 total PAGA penalties ($11,250.00 to LWDA). The final approval hearing is scheduled for <u>October 8, 2026 at 2:00 p.m</u>. in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. *See* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
13 2:30 p.m.	The People of the State of California v. Abbott Laboratories, et al. 2016-00879117	<u>Attorney Kevin Neylan's Motion to Appear Pro Hac Vice</u> Attorney Kevin Neylan moves to appear pro hac vice for defendants Teva Pharmaceuticals USA, Inc. and Barr Pharmaceutical, LLC. For the following reasons, the unopposed motion is granted. The application is verified and/or supported by a declaration(s). It sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and dates of admission and attests to the applicant's good standing. The application states there have been two prior applications in California state courts in the last two years. The accompanying Shipley Declaration states the application fee has been paid and the proof of service reflects service of the application on the State Bar of California via its online portal. Cal. R. Ct. 9.40(c)-(e). Defendants Teva Pharmaceuticals USA, Inc. and Barr Pharmaceutical, LLC to give notice.